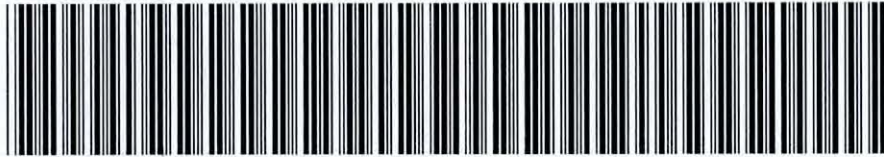


EWR D&I ANNOTATION



FAN-000001L072001DP87-7689

Artemis # : 000001L072001DP87

Record Created Date : 09/21/2011

Printed Date : 09/21/2011

Description :

DI11-087 SEQUENCE ID 87: SERVICE REQUEST DETAIL LOG FOR GENERAL MOTORS LLC MAKES THE ALLEGATION THAT A 2006 CHEVROLET COBALT IS POTENTIALLY DANGEROUS AND UNSAFE. THE LOG STATES THAT THE VEHICLE IN QUESTION WAS INVOLVED IN A INCIDENT WHICH LED TO A DRIVER FATALITY. THE D&I ANNOTATIONS LISTS 'STEERING', 'AIRBAG', AND 'FIRE' AS A DEFECTIVE COMPONENTS. NO MENTION OF THE 'AIRBAG' COMPONENTS WERE MENTIONED IN THE POLICE REPORT PROVIDED. THE BREIF POLICE REPORT PROVIDED CLAIMS THAT THE VEHICLE LEFT THE ROADWAY AND HIT A TREE AND CAUGHT FIRE. THE REPORT ALSO STATES THAT THE SPEED OF THE VEHICLE WAS TOO GREAT FOR THE TYPE OF TURN ALTHOUGH NO ESTIMATED SPEED WAS MENTIONED. LITTLE INFORMATION WAS PROVIDED WITH THE SEQUENCE DOCUMENTATION. FROM A SEARCH OF STEERING COMPONENT CODES RECALL #10V073000 WAS FOUND FOR THE ELECTRIC POWER STEERING WHEREBY THE PROBLEM DESCRIPTION MENTIONS THAT IF 'POWER STEERING ASSIST' IS LOST THAT MORE EFFORT WOULD BE NEEDED TO STEER THE VEHICLE AT LOW SPEEDS. 3 TSBS WERE FOUND FOR THE STEERING COMPONENT CODE WHEREBY ALL 3 MENTIONED A RATTLE NOISE AT THE STEERING COLUMN AT SLOW SPEEDS. FROM A VOQ SEARCH, OVER 900 REPORTS WERE FOUND FOR THE STEERING COMPONENT CODE FOR THE VEHICLE. FROM A FIELD REPORT SEARCH, ROUGHLY 100 REPORTS MENTION A LOSS OF POWER STEERING ASSIST. *NO

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE
Washington, DC 20590

OCT - 4 2007

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-087

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 2nd quarter of 2007. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents
For Reporting Category: L
For the following Sequence IDs: 20, 37, 64, 79, 80, 87, 127, 132, 154, 203, 211, 252, 253, 288, 306, 353

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **October 26, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in cursive script that reads "Christina Morgan".

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS CORPORATION

Vehicle Structure & Safety Integration

November 8, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

RECEIVED
NOV-215
2007 NOV -9 P 12:33
OFFICE OF
DEFECTS INVESTIGATION

NVS-217ph
DI07-087

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated October 4, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 2nd quarter of 2007.

GM's response is comprised of 17 disks for the incidents that are the subject of DI07-087.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 288 224036947 - 632657 and 2006 Chevrolet TrailBlazer 360. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 288 224036947 - 632657_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the disk are as follows:

DI07-087
288 224036947 - 632657
2006 CHEVROLET TRAILBLAZER 360

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

2. Provide a copy of the Police Accident Report.

See attached document and photographs on CD.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

288 224036947 - 632657_01_001 - is the first document responsive to Inquiry no. 1.
288 224036947 - 632657_02_001 - is the first document responsive to Inquiry no. 2

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-087 Response.doc

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incidents that are the subject of DI07-087, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed disk for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(16 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
20	5GADV33L15D [REDACTED]	NISM
37	1G6KD54Y14U [REDACTED]	NISM
64	KL1TG56667B [REDACTED]	NISM
79	1G1AK52F857 [REDACTED]	NISM
80	1G1AK12F457 [REDACTED]	NISM
87	1G1AK55F467 [REDACTED]	NISM
127	2G1WH52K259 [REDACTED]	NISM
132	UNKNOWN	RUMOR
154	1G1ZT51F96F [REDACTED]	LIT
203	1GCEC14X15Z [REDACTED]	NISM
211	2GCEC13V361 [REDACTED]	NISM
252	1GNEK13Z84J [REDACTED]	RUMOR
253	1GNEK13T64R [REDACTED]	LIT
288	1GNES13H462 [REDACTED]	NISM
306	1GNDV23L85D [REDACTED]	LIT
353	1GTHK39224E [REDACTED]	LIT

2. **Provide a copy of the Police Accident Report.**

Response: See attached document and photographs on CD.

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may

be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in dark ink, appearing to read "G. Kent", with a stylized flourish extending to the right.

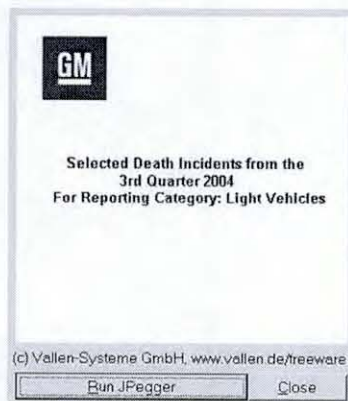
Gay P. Kent
Director
Product Investigations

Enclosures: 17 Disks
Attachment A

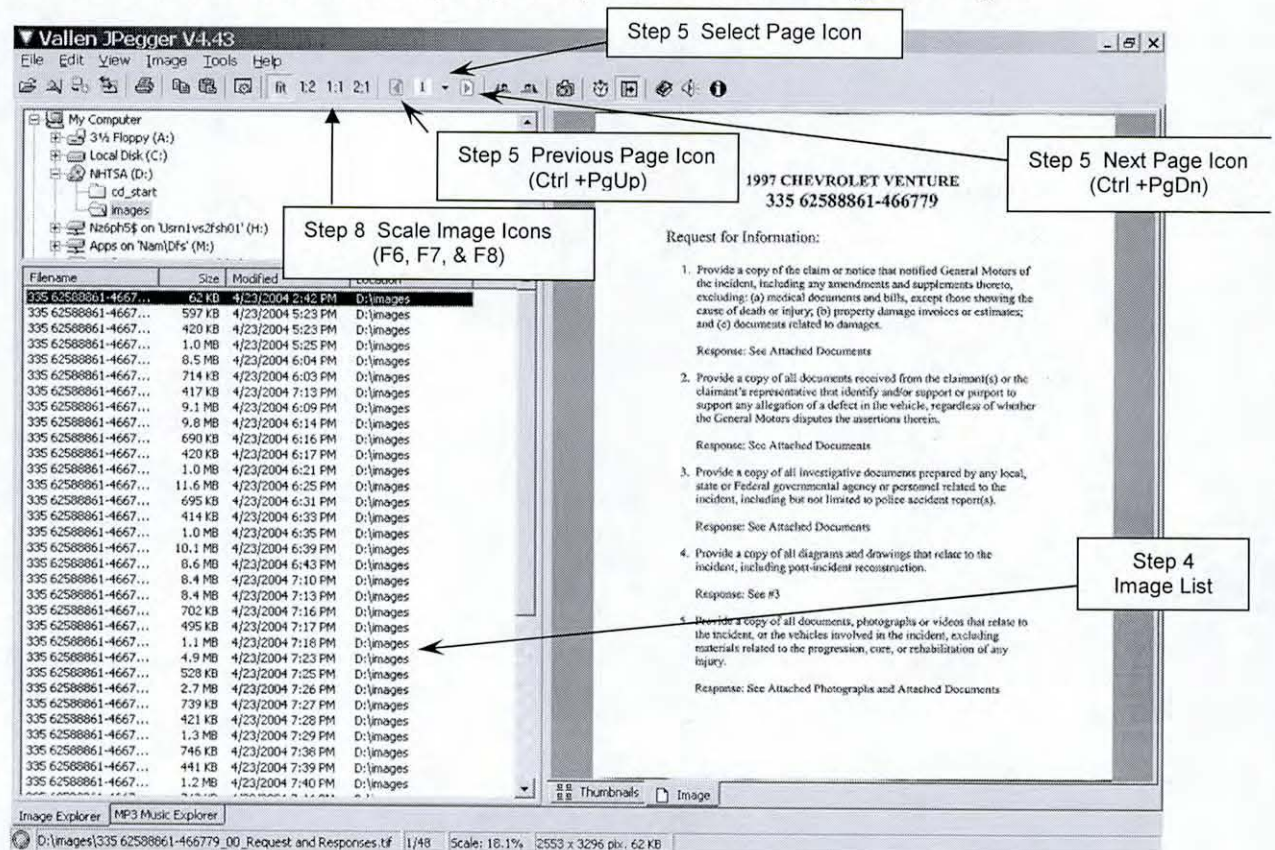
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

FOR COURT USE ONLY

ATTORNEY OR PARTY WITHOUT ATTORNEY (Print name for number and address)
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO: 909-469-5127 FAX NO: 909-469-5126

PLAINTIFF'S
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1011)

CASE NUMBER

ASSIGNED JUDGE

1. Check one box below for the case type that best describes this case:
☒ Auto Tort (22)
☐ Other employment (15)
☐ Contract
☐ Breach of contract/warranty (06)
☐ Collection (e.g., money owed, open book accounts) (09)
☐ Insurance coverage (18)
☐ Other contract (37)
☐ Real Property
☐ Existence/denial/transfer of interest (14)
☐ Wrongful eviction (38)
☐ Other real property (e.g., quiet title) (28)
☐ Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (39)
☐ Judicial Review
☐ Asset forfeiture (05)
☐ Partition re: subdivision award (13)
☐ Will of decedent (07)
☐ Other judicial review (36)
☐ Provisionally Comples Civil Litigation (Cal. Rules of Court, rules 1800-1812)
☐ Arbitration/Trial registration (03)
☐ Construction defect (10)
☐ Claims/Insurance/Matters, Trust Rights

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring occasional judicial management and:
 a. ☒ Large number of separately represented parties d. ☒ Large number of
 b. ☒ Extensive practice raising difficult or novel issues that will be time-consuming to resolve e. ☐ Coordination in
 c. ☒ Substantial amount of documentary evidence f. ☐ Substantial post
 3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐
 4. Number of causes of action (specify): FIVE
 5. This case ☐ is ☒ is not a class action suit.
 Date: JULY 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836
 (Print or stamp name)

NOTICE
 Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (see under the Probate, Family, or Welfare and Institutions Codes). Cal. Rules of Court, rule 1011.
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 of the California Rules of Court, you must either perfect to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

Form Approved For Mandatory Use
 Judicial Branch of California
 982.2(b)(1) (Rev. January 1, 2005)

CIVIL CASE COVER SHEET

Next Image
 Previous Image
 Next page Ctrl+PgDn
 Previous page Ctrl+PgUp
 Full screen image Ctrl+F11
 Slide show F10
 Fit Scale to fit F5
 Scale 50% F6
 Scale 100% F7
 Scale 200% F8
 Rotate left Ctrl+Alt+L
 Rotate right Ctrl+Alt+R
 Rotate by 180°
 Copy to clipboard
 Copy file to... Ctrl+C
 Move file to... Ctrl+X
 Rename file... F2
 Delete file... Del
 EXIF Image Information...
 Preferences... Ctrl+R

Step 7 Next File (Image)

Step 7 Next page

Step 8 Scale Image

Step 7 Image Properties

DI07-087
87 224036792 – 632179
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Service Request Detail

SR No. [REDACTED] **Ref No.** [REDACTED] **Goodwill** No Goodwill Offered **BRC Type** PAR
Account [REDACTED] **Site** [REDACTED] **GW SubType** **Bus. Unit** BRC
Last Name [REDACTED] **First Name** [REDACTED] **Approval** Not Initiated **Area** PAR
Daytime # [REDACTED] **Evening #** [REDACTED] **UCC** Steering - General **Sub-Area** Initiate PAR- Injury
Address [REDACTED] **City** [REDACTED] **Involved Dir** **Safety** Yes
State [REDACTED] **ZipCd** [REDACTED] **Source** **Phone** **License #** **Updated** 4/27/2007 12:28:48 PM
Serial #/VIN [REDACTED] **Con Acct** [REDACTED] **Status** **Open** **Owner** RODRIGOS
Make Chevrolet **Model Year** 2008 **Sub-Status** **Opened** 4/25/2007 09:57:04 AM
Model Cobalt **Warr. Start** **Closed**
Abstract Customer had a collision and alleges the steering was defective
Customer VIN:1G1AK55F487 [REDACTED] **Description** BRC PAR CASE. DO NOT ASSUME. FORWARD ALL INQUIRIES TO JOSE RODRIGUEZ EXT 21333 ***

Pre-PAR

PAR Notifier [REDACTED] **Incident Date/Time** 4/27/2007 01:00:00 AM **Injuries: # Other Veh** [REDACTED] **# People in Veh** [REDACTED] **Road Surface** [REDACTED] **Road Cond.** [REDACTED] **Fire Report#** [REDACTED] **Police Report#** 0766004884
Fleet Manager [REDACTED] **Driver Last Name** [REDACTED] **Driver First Name** [REDACTED] **Height** [REDACTED] **DOB** [REDACTED] **Disabilities** [REDACTED]
Insurance Agent Last Name [REDACTED] **Insurance Agent First Name** [REDACTED] **Phone #** [REDACTED] **Insurance Agency** [REDACTED]

Incident Loc Ramp 8th, southbound lane, Powdermill MD **Incident Desc** Cust was supposedly getting off the ramp @ Ramp 8th, southbound lane, Powdermill MD
Component [REDACTED] **Damage Desc** [REDACTED]
Vehicle Loc In Isolation - exact location undisclosed as yet **Add Info** customer died in the accident, informant is Kely Wilson Piscetella/ Edo Administrative-Enterprise Vehicle Rental, MD/ 3012082235, 8am-5pm EST, who has stated that the bereaved has legal
Emergency Svc Names [REDACTED] **Maint Loc** [REDACTED]

PAR Detail

Collision Y	Non Collision	Property Damage N	Thermal Evt N	Spec Equip	
Vehicle Speed	Weather Condition	Prop Owner	Property Type		
Last Service Date	Loc Last Service	Property Location	Prop Est Repair Cost		
Veh Est Repair Cost	Spec Equip Installer	Prop Damage Description			
Primary Veh Use	Inspection Type	Inspected By	Inspection Date/Time		
Veh Damage Description		Explain Other			

Report Generated for toporowm on 4/27/2007

Page 1 of 5

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
[REDACTED]						
Injury Description		Medical Rpt#	Treatment Location		Treated By	
[REDACTED]						
Street Address		City	State	Zip Code		
[REDACTED]						

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/27/2007 12:28:48 PM	RODRIGOS	RODRIGOS	Ownership Changed	Ownership Escalated to BRC	Done	4/27/2007 12:28:48 PM	Ownership Escalated to BRC
Contact Last Name	Contact First Name	Account	BAC Code				
[REDACTED]							

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/27/2007 12:20:07 PM	RODRIGOS	ESISBIQU	Escalation	ESIS - Fatalities	In Progress		Assigned to ESIS
Contact Last Name	Contact First Name	Account	BAC Code				
[REDACTED]							

Comments

Fatality

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:45:22 AM	DRAHEICM	RODRIGOS	Ownership Changed		Done	4/26/2007 11:45:22 AM	Service Request Ownership has changed FROM: IGNACIPH TO: RODRIGOS
Contact Last Name	Contact First Name	Account	BAC Code				
[REDACTED]							

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:35 AM	DRAHEICM	RODRUJOS	BRC PAR	Initial Contact- Phone	Done	4/27/2007 12:20:03 PM	Called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments
fatality. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:35 AM	DRAHEICM	RODRUJOS	BRC PAR	Acknowledgement	Done	4/27/2007 12:19:56 PM	Called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments
fatality. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:34 AM	DRAHEICM	RODRUJOS	BRC PAR	Initial Contact- Dealer	Done	4/27/2007 12:19:51 PM	Called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments
fatality. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:34 AM	DRAHEICM	RODRUJOS	BRC PAR	Initial Contact- AVM	Done	4/27/2007 12:19:42 PM	Called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments
fatality. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:34 AM	DRAHEICM	RODRUJOS	Notify CRM		Done	4/27/2007 12:19:38 PM	File Assigned
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

fatdy. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:34 AM	DRAHEICM	RODRUJOS	Research		Done	4/27/2007 12:19:28 PM	Researched VIN
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

fatdy. Escalating case to ESIS.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/26/2007 11:44:34 AM	DRAHEICM	RODRUJOS	BRC PAR	Case Assigned	Done	4/27/2007 11:58:12 AM	Assigned File to Jose Rodriguez ext 21333
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Case received.

Jose Rodriguez ATX PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/25/2007 04:12:09 PM	IGNACIPH	DRAHEICM	Escalation	Initiate PAR	Done	4/26/2007 10:28:59 AM	"Assigning activity to PAR QUEUE."
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

"CRS advised that a person from the PAR Department will contact the customer within 2 business days."

phil stewart (ignacio)/ elementalCAC/ Ma

Received and assigned in PAR.

Chad Draheim/ATX/Par Workflow

Confidential Comments

CMD

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
4/25/2007 10:45 AM	IGNACIPH	IGNACIPH	Inbound Call Third Party	Complex Request	Done	4/25/2007 02:42:57 PM	"Alleged product allegation-"steering system was defective".
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Customer states : A fatality resulted in the driver perishing from the accident due to the supposedly manufacturing defect on the steering system.

Customer seeks: client is represented, initialzing report for documentation.

CRS advised customer that "their information will be forwarded to the Product Allegation Department within the BRC."

phil stewart (ignacio)/ elementalCAC/ Ma

Confidential Comments

UCC Information

UCC Code	Symptom	Description
M01	No Symptom Indicated	Steering - General

GM Vehicle Inquiry System Summary

(b) (6)

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VIN :	1G1AK55F467
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VEHICLE INFORMATION

Merchandising Model :	1AK69 -2006 COBALT 4-DOOR LS SEDAN			Warranty Start Date :	07/28/2005		
BARS Order Type :	50 - FLEET						
Delivering Dealer :	OURISMAN S ROCKMONT CHEVROLET 15301 FREDERICK RD ROCKVILLE , MD 20855-2120 (301) 424-5900			Selling Source :	13 - CHEVROLET		
				Site Code :	14469		
				Business Associate Code :	113694		
Service Contract :	No	Branded Title :	No	Warranty Block :	No	PDI Status :	Paid

REQUIRED FIELD ACTIONS

Vehicle Has No Current Record Of Outstanding Campaigns
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SERVICE INFORMATIONAL ITEMS

Vehicle Has No Current Record Of Outstanding Service Information
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ON STAR AND XM SATELLITE RADIO INFORMATION

Vehicle Has No Associated On Star or XM Radio Information.
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APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER	07/28/2005	10 miles	07/28/2008	36010 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH	07/28/2005	10 miles	07/28/2011	100010 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	07/28/2005	10 miles	07/28/2013	80010 miles
36/36000 FEDERAL EMISSION	07/28/2005	10 miles	07/28/2008	36010 miles
60/60000 POWERTRAIN - U.S.	07/28/2005	10 miles	07/28/2010	60010 miles

CLAIM HISTORY

R.O Date	R.O Number	Type	Labor Operation	Odometer Reading

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4/30/2007

09/01/2006	587295	#	B4367 - ROD. FRONT DOOR OUTSIDE HANDLE TO LOCK - LEFT - R&R OR REP	23052 miles
01/31/2006	532337	#	K5225 - CONTROL ASSEMBLY, FLOOR SHIFT - REPLACE	9633 miles
01/31/2006	532337	F	Z7200 - CORPORATE PARTS RETURN REIMBURSEMENT	9633 miles
01/31/2006	532337	#	Z5000 - DEALER/RETAILER TRADE(PART OBTAINED LOCALLY)	9633 miles
07/26/2005	A19606	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	0 miles

CHECK HISTORY INFORMATION

Vehicle Has No Associated Check History Information.
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VIN :	1G1AK55F467
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CLAIM HISTORY

Repair Order Date :		09/01/2006		Repair Order Number :		587295		Odometer Reading :		23052 miles	
Served By :		FITZGERALD CHEVROLET-CADILLAC 114 BAUGHMAN'S LN FREDERICK, MD 21702-4011 (301) 696-9200				Selling Source :		13 - CHEVROLET			
						Site Code :		14322			
						Business Associate Code :		113673			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
09/08/2006	724	01	#	B4367 - ROD, FRONT DOOR OUTSIDE HANDLE TO LOCK - LEFT - R&R OR REP		N/A		N/A	N/A	\$ 48.80	<u>Y</u>

Repair Order Date :		01/31/2006		Repair Order Number :		532337		Odometer Reading :		9633 miles	
Served By :	CRISWELL CHEVROLET, INC. 503 QUINCE ORCHARD RD GAITHERSBURG, MD 20878-1497 (301) 948-0880					Selling Source :		13 - CHEVROLET			
						Site Code :		14126			
						Business Associate Code :		113713			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part		Auth Code	Person Code	Line Total	Comments
02/21/2006	667	01	F	Z7200 - CORPORATE PARTS RETURN REIMBURSEMENT		N/A		N/A	N/A	\$ 27.34	N
02/10/2006	664	01	#	K5225 - CONTROL ASSEMBLY, FLOOR SHIFT - REPLACE		15244138 - CONTROL		N/A	N/A	\$ 176.45	N
02/10/2006	664	02	#	Z5000 - DEALER/RETAILER TRADE(PART OBTAINED LOCALLY)		15244138 - CONTROL		N/A	N/A	\$ 6.47	N

Repair Order Date :		07/26/2005	Repair Order Number :		A19606	Odometer Reading :		0 miles	
Served By :	OURISMAN S ROCKMONT CHEVROLET 15301 FREDERICK RD ROCKVILLE, MD 20855-2120 (301) 424-5900					Selling Source :		13 - CHEVROLET	
						Site Code :		14469	
						Business Associate Code :		113694	

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Cycle Date	Cycle Nbr	Case	Type	Labor Operation	Part	Auth Code	Person Code	Line Total	Comments
07/29/2005	608	01	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	N/A	N/A	N/A	\$ 107.64	N

CHECK HISTORY

Vehicle Has No Associated Check History.

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GM Vehicle Inquiry System

Vehicle Build

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VIN	1G1AK55F467
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VEHICLE BUILD

Merchandising Model :	1AK69 -2006 COBALT 4-DOOR LS SEDAN		
Gross Vehicle Weight Rating :	1705 kg (3760 lb)	Order Number :	JDMBQR
Build Date :	07/26/2005	Build Plant :	167A

OPTION CODES

AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS	AR9 - DELUXE FRONT BUCKET SEAT
B0L - GM PRODUCTION WEEK #29	C1U - FLT-ENTERPRISE RENT A CAR
C67 - ELECT. FRONT AIR CONDITIONER	DC8 - MIRROR, O/S MANUAL FLDG, BLK
DT4 - ASHTRAY AND LIGHTER	FE1 - SUSPENSION SYSTEM-SOFT RIDE
FE9 - FEDERAL EMISSIONS	FLT - FLEET PROCESSING OPTION
FY1 - TRANS/AXLE 3.63 RATIO	IPB - INTERIOR TRIM DESIGN
J41 - POWER DISC FRONT BRAKES	K64 - 115 AMP GENERATOR
LOD - ASSEMBLY PLANT - LORDSTOWN, OHIO	L61 - 2.2L DOHC 4 CYL ENGINE
MN5 - 4 SPEED AUTO TRANSMISSION	MX0 - 4-SPD. AUTO. TRANS. W/OVERDRIVE
NT7 - FEDERAL EMISSION TIER 2	N46 - 4 SPOKE STEERING WHEEL
PG1 - 15" STEEL WHEEL	QTU - P195/60R15 TOURING BW TIRES
R6F - IDENTIFY B-CODE USERS	R6P - PREMIUM PAINT
UN0 - AM/FM STEREO W/CD & RDS	UQ4 - BASE SPEAKER SYSTEM
VK3 - FRONT LICENSE PLATE MOUNT	VQ2 - FLEET ORDERING AND ASSISTANCE
VX7 - LONG TERM DAILY RENTAL PROGRAM	V2G - FULL FUEL FILL CREDIT
V73 - STATEMENT OF VEHICLE CERT. - U.S./CANADA	1LS - 1LS BASE PACKAGE
1SZ - OPTION PACKAGE DISCOUNT	14B - GRAY
14I - GRAY	6AR - FRONT SPRING
7AR - FRONT SPRING	74U - VICTORY RED
8AA - REAR SPRING	9AA - REAR SPRING

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TA000094668

State of Maryland Motor Vehicle Accident Report

Report No. (b) (6)	Page of 1 of 1	Accident Date 04/07/07	Accident Time 10:26	Report Type ☒ Fatal ☐ Injury ☐ PDO ☐ Hit + Run ☐ No-Traffic	Research 6	Local Case No. (b) (6)	Local Codes 8	Photos? ☐ No ☒ Yes
Investigating Officer ID Tpr Trolaven, J 4001	Agency and Area MSP 66	Supervising Officer ID Sgt. Redpath, T 2660	Reviewer ID Sgt. Redpath, T 2660	Code - And - Name of Municipality 000 Not Applicable	County 16			
Rd Char 18 04 UU 00000	RTE NUM Accident Occurred On 1	Road Name Ramp #8	In Lane 19 0 O	Traf Sig 20 ☒ No ☐ Yes	On Ramp 21 ☐ No ☒ Yes	Ramp Number (Direction) 1 N-W 2 W-N 3 E-N 4 N-E 5 SE 6 E-S 7 W-S 8 S-W 9 Other	In Intersection 23 ☒ No ☐ Yes	
Rd Cond 24 01 IS 00095	Intersecting Route 25	Intersecting Road Name or Log Mile Reference Manual description No name.	Mile PT 27 000.00	Dtr 28 0	Dist of Acc fr INT-RTE/Ret & Dtr. 000.00		Fr ☒ Me ☐ U	
Rd Div 30 02	Accident Diagram Show Label: Roads, Traffic Units, the Travel Direction, consistent with the Log Mile Reference Manual, and Movement of Traffic Units.	Describe Accident briefly, identify units by numbers. Also identify the following (a) the object damaged & nature of damage (property other than vehicles) and (b) the name & address of owner when applicable.						
Srl Cond 34 02								
CAN Zone 35 ☒ N ☐ Y								
Event 1 37 16								
Event 2 38 09								
Fix Obj 39 11								
Coll Ty 4 17								
Light 41 01								
Weather 42 01								
Unit 43 01	NAME (First, Middle, Last) [Redacted]	Sex 45 02	Unit 43 00	NAME (First, Middle, Last) [Redacted]	Sex 45			
Type of 46 Unit ☒ Driver ☐ PED	Address (No., Street, City, State, Zip) Tel [Redacted] Baltimore MD [Redacted]	h/ 48 01	Type of 46 Unit ☐ Driver ☐ PED	Address (No., Street, City, State, Zip) Tel [Redacted]	h/ 48			
Movement 50 07	Cond'n 51 01	Subst 52 01	Test 53 00	Result 54 00	For Peds Only	Age 55	Type 56	
Speed Limit 60 45	Saf. Eq 61 13	Eq Prob 62 01	Eject 63 01	Citation Number(s) PENDING	64	FAUL 65 ☒ No ☐ Yes		
Going 66 02	Driver's License Number [Redacted]	67	State 68 MD	Class 69 C	67	State 68	Class 69	
Continue 70 04	DR Date of Birth 71 [Redacted]	Irregular Condition ☐ Parked ☐ Hit&Run ☐ Driverless ☒ Caught Fire 72	HM Split 73 00	Haz Mat No. 00	74			
Body Ty 7 02	Commercial Vehicle Only	U.S. DOT Number 00	ICC Number 00	Body Ty 78 00	CDL? ☒ Y ☐ N			
Most HE 80 09	Owner or Carrier Name (Write "SAME" if Driver) Enterprise Lease (Res) 3017735675	Tel [Redacted]	81	Most HE 80 09	Owner or Carrier Name (Write "SAME" if Driver) [Redacted]	Tel [Redacted]	81	
Current Circumstances 82- 09	Owner / Carrier Address 2273 Research Blvd. 600 Rockville MD 20850	83	Towed Vehicles 00 00 00	84	82-2 Year & Make of Vehicle 2006 Chevrolet	Model Cobalt	86	
82-3 Exp Yr & Registr # State 00 [Redacted] [Redacted]	89	Areas Damaged 90 01 16 17	Insurer Enterprise Rent a Car	91	82-4 Vehicle ID Number 1G1AK55F467 [Redacted]	92	Policy No. [Redacted]	
82-4 Vehicle ID Number 1G1AK55F467 [Redacted]	92	Policy No. [Redacted]	93	82-4 Vehicle ID Number [Redacted]	92	Policy No. [Redacted]	93	
Dam Ext 94 04	Vehicle Removed By Past and Present Tow	95	Vehicle Removed To Tow Lot	96	Dam Ext 9 [Redacted]	Vehicle Removed By [Redacted]	95	
Traffic Unit 97 01	Seat 98 03	CODE all injured & uninjured Passengers below. Use "Y" for witness in TRAF UNIT and SEAT columns. Write Name & Address of Injured & witness (phone). [Redacted] Randallstown MD [Redacted]			99	Sex 01	Age 01	
						Seat Equ 01	Eq Prob 00	
						Injury 05	Eject 01	
						EMS Unit A		
EMS Unit A	Injured 108 Taken To Medic 117, 93	Injured 108 Taken To Laurel Hospital	EMS Run Report # 110 70970095	EMS Unit B	Injured 108 Taken To Trooper 2	Injured 108 Taken To PGHC	EMS Run Report # 110 70970095	